

27. **Ejectment of person ceasing to be schoolmaster.**—A schoolmaster or other officer of the trustees, whose appointment has been cancelled or whose office has otherwise ceased, and who in defiance of the trustees continues to hold over the premises given up to him, cannot, as he was lawfully put in possession, be treated on the footing of a trespasser on another's lawful possession, so as to be removable with as little force as may be necessary; but can be ejected in a summary way by application to two justices of the peace under the provisions of 23 & 24 Vict. c. 136, s. 13.

28. **"Finding a master."**—Where the trustees were directed to apply the rents "towards the necessary *finding a master*, and for the pains of such master," and the trustees applied part of the revenue towards *rebuilding and repairing* the school-room and school-house, it was held to be a good execution of the trust, because a school-room and house * were necessary, and if these were not pro- [*538] vided by the trustees they must have been provided by the master himself, and so it was in effect applied for the pains of the master (a).

29. **"Relief of poor."**—So a trust "for the *relief of the poor*" has been construed to authorise an application of the funds to the building of a *school-house*, and the *education of the poor* of the parish (b).

30. **Repairing and rebuilding.**—So where an estate had been given to trustees for the *repair* of a church and chapel of ease thereto belonging, and the parish had taken down the chapel to erect a new one on a different site, it was determined that the trustees had not exceeded the line of their duty in expending the accumulated rents upon the *rebuilding* of the chapel; but it was held that the *rents* only, and not the *corpus* of the estate, could be so applied; and the Court had great doubt whether anything could be laid out upon the *fitting-up* of the chapel (c). But where there was a large surplus fund and the objects of the charity were sufficiently

(a) Attorney-General v. Mayor of Stamford, 2 Sw. 592.

(c) Attorney-General v. Foyster, 1 Anst. 116. See *post*, p. 575.

(b) Wilkinson v. Malin, 2 Tyr. 544, see 570.